

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1312

By: Humphrey

AS INTRODUCED

An Act relating to crimes and punishments; making certain acts unlawful; providing penalties; authorizing courts to suspend criminal prosecutions under certain circumstances; remanding persons to the custody of the Department of Corrections; directing the Department to notify certain federal agency to arrange transportation; providing for revocation of sentence under certain circumstances; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 447 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. Any person who is apprehended and arrested for violating a criminal law of this state and, after determining the citizenship status of the person is found to be unlawfully present in the United States, shall be guilty of a felony punishable by imprisonment in the custody of the Department of Corrections for a term not to exceed life.

1 B. In lieu of the sentence of imprisonment, the court shall
2 have the authority to suspend the criminal prosecution and issue a
3 written order discharging the person and requiring said individual
4 to return to his or her country of origin. Upon issuance of the
5 written order, the court shall direct the law enforcement agency
6 having custody of the person to remand the person to the custody of
7 the Department of Corrections with instructions to return the person
8 to his or her country of origin.

9 C. Once the Department receives custody of the person, the
10 Department shall notify the United States Customs and Border
11 Protection of the Department of Homeland Security to arrange
12 transportation for the repatriation of said person back to his or
13 her country of origin.

14 D. Should the person return to the State of Oklahoma after
15 repatriation and be apprehended by law enforcement, the person shall
16 be subject to revocation of the suspended sentence and ordered by
17 the court to serve the entirety of his or her original sentence of
18 imprisonment.

19 SECTION 2. This act shall become effective November 1, 2025.
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